IN THE SUPREME COURT OF THE STATE OF CALIFORNIA

THE PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff and Respondent, v. SCOTLANE McCUNE, Defendant and Appellant.	Supreme Court No. S276303 Court of Appeal No. A163579

On Review from the Decision of the Court of Appeal, First Appellate District, Division Five
Appeal from the Judgment of the Superior Court of the State of California for Napa County,
Superior Court No. CR183930
Honorable Mark S. Boessenecker, Judge

OPENING BRIEF ON THE MERITS

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ISSUE PRESENTED

Did the trial court exceed its jurisdiction by setting the amount of victim restitution after terminating defendant's probation pursuant to Assembly Bill No. 1950 (Stats. 2020, ch. 328)?

INTRODUCTION

Probation is "qualitatively different from such traditional forms of punishment as fines or imprisonment" because probation is "an act of clemency in lieu of punishment" and "its primary purpose is rehabilitative in nature [citation]." (*People v. Howard* (1997) 16 Cal.4th 1081, 1092.) "A grant of probation is intended to afford the defendant an opportunity to demonstrate over the prescribed probationary term that his or her conduct has reformed to the degree that punishment for the offense may be mitigated or waived." (*People v. Feyrer* (2010) 48 Cal.4th 426, 439, emphasis in original, superseded by statute on other grounds, as stated by *People v. Park* (2013) 56 Cal.4th 782, 789, fn. 4.) Successful completion of probation is a means for a person to achieve "reinstatement to his former status in society" without the stigma of prior criminality haunting him for the rest of his life. (*Stephens v. Toomey* (1959) 51 Cal.2d 864, 871.) Consistent with this purpose, it is only "[d]uring the probationary period" that "the court retains jurisdiction over the defendant [citation], and at any time during that period the court may, subject to statutory restrictions, modify the order suspending imposition or execution of sentence [citation]." (*Howard*, *supra*, 16 Cal.4th at p. 1092; accord *Feyrer*, *supra*, 48 Cal.4th 426, 440 ["the probation statutes confer upon the trial court jurisdiction and authority over a defendant during the term of probation"].) An

understanding of the foregoing aims of California's probation statutes and the strict jurisdictional limitations implemented to further these legislative goals is critical to answering the question of whether a trial court has the authority to set the amount of victim restitution after probation has expired. These considerations unerringly point to an absence of such authority.

Appellant Scotlane McCune was sentenced in June 2018 to five years of probation after pleading no contest to felony hit and run involving the injury of his passenger. One of the probation terms required payment of victim restitution in an amount to be determined at a later date. Halfway through his probationary period, the Legislature enacted Assembly Bill No. 1950 (AB 1950), which amended Penal Code[1] section 1203.1, subdivision (a), so that a felony probation term such as his could not exceed two years. (Stats. 2020, ch. 238.) As a result, McCune's probation automatically terminated on January 1, 2021 without the court setting an amount of victim restitution.

Section 1203.3 confers authority to the court to revoke, modify, or change a probationer's sentence, but specifies that the authority exists only during the term of probation. (§ 1203.3, subd. (a).) It further allows the court to modify a restitution order pursuant to section 1202.4, subdivision (f) "during the term of the probation." (§ 1203.3, subd. (b)(5).) Read together, these statutes direct that a restitution order may not be modified when a defendant is no longer on probation. Two cases, *Hilton v. Superior Court* (2014) 239 Cal.App.4th 766 and *People v. Waters* (2015) 241 Cal.App.4th 822, support this interpretation.

The Court of Appeal below rejected Hilton's and Waters's interpretations of the statutory framework and instead found

[1] All further statutory references are to the Penal Code unless otherwise noted.

that section 1202.46—which allows the court to "retain jurisdiction over a person subject to a restitution order for purposes of imposing or modifying restitution until such time as the losses may be determined"—was not limited by section 1203.3's restriction on the court's authority to modify probation solely before it expires. The Court of Appeal erroneously upheld the trial court's finding that it retained jurisdiction to set an amount of restitution beyond the termination of McCune's probation. Additionally, in *People v. Zuniga* (2022) 79 Cal.App.5th 870, 876, Division One of the Fourth District Court of Appeal recently and wrongly concluded that a trial court retains jurisdiction under a similar set of facts, finding section 1202.46 controlling and disregarding the statutory analysis of Hilton and Waters.

The holdings of Hilton and Waters are compelled by the statutory schemes for restitution and probation. Section 1202.46 does not extend a court's jurisdiction over a person who is no longer on probation. Reading section 1202.46 in conjunction with section 1170 demands an interpretation that section 1202.46 is, in fact, inapplicable to cases where a defendant is granted probation. (*Waters*, *supra*, 241 Cal.App.4th at pp. 830–831; accord, *Hilton*, *supra*, 239 Cal.App.4th at pp. 781–782.) In the context of probation, the Legislature has made no provision for ordering the tolling of a court's jurisdiction to modify restitution after the expiration of probation. Applying established canons of statutory construction, it should be presumed—as the plain reading of section 1203.3 suggests—that the Legislature therefore intentionally limited a court's authority to modify a term of probation, including restitution, to the probationary period. (See, e.g., *Pacific Gas & Electric Co. v. Public Utilities Com.* (2015) 237 Cal.App.4th 812, 842–843; *Moore v. Hill* (2010)

188 Cal.App.4th 1267, 1282.) To hold otherwise would grant courts everlasting jurisdiction over former probationers to impose additional restitution in perpetuity.

STATEMENT OF THE CASE

On November 15, 2017, the Napa County District Attorney filed a felony information charging McCune in count one with felony hit and run involving injury of another person (Veh. Code, § 20001, subd. (a)) and in count two with a misdemeanor violation of driving without a valid license (Veh. Code, § 12500, subd. (a)). (CT[2] 26–27.)

On May 15, 2018, pursuant to a negotiated disposition, McCune pleaded no contest to felony hit and run involving injury of another person (Veh. Code, § 20001, subd. (a)) and the prosecution dismissed the misdemeanor count. (CT 38–42; 12 RT 856–857.) On June 13, 2018, the trial court suspended imposition of sentence and placed McCune on formal probation for five years subject to terms and conditions, including 120 days in county jail and that he pay victim restitution in an amount to be determined by the probation officer and the court. (CT 63; 13 RT 908–909.)

On December 31, 2020, the probation department filed a restitution investigation report, indicating that the victim had submitted a restitution claim in the amount of $30,166.23 for medical bills to the district attorney's office in April 2018. (CT 60, 85.) The following day, January 1, 2021, AB 1950 went into effect. With exceptions not relevant to this case, the new law amended section 1203.1, subdivision (a) to reduce the maximum felony probation term to two years.

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[2] Citations made to the clerk's transcript on appeal will be abbreviated "CT" and citations made to the reporter's transcript on appeal will be abbreviated "RT".

On May 3, 2021, following briefing by both parties and a hearing, the trial court found that it had jurisdiction to set an amount of victim restitution. (CT 131; 18 RT 1131.)

McCune timely appealed from the restitution order on September 24, 2021. (CT 139.) On July 25, 2022, Division Five of the First District Court of Appeal issued a published opinion affirming the judgment. (*People v. McCune* (2022) 81 Cal.App.5th 648.)

On October 26, 2022, this Court granted McCune's petition for review.

ARGUMENT

I. THE TRIAL COURT ACTED IN EXCESS OF ITS JURISDICTION WHEN IT SET AN AMOUNT OF RESTITUTION AFTER McCUNE'S PROBATION TERMINATED PURSUANT TO AB 1950.

A. Proposition 8 and the Subsequent Victim Restitution Framework.

In 1982, California voters passed Proposition 8, also known as The Victims' Bill of Rights, which added article I, section 28, to the California Constitution. (*People v. Giordano* (2007) 42 Cal.4th 644, 652.) That provision provided crime victims the right to receive restitution "from the persons convicted of the crimes for losses they suffer." (*Giordano*, *supra*, 42 Cal.4th at p. 652; see also *In re Brittany L.* (2002) 99 Cal.App.4th 1381, 1386; Cal. Const., art. I, § 28, subd. (b)(13)(B) ["Restitution shall be ordered from the convicted wrongdoer in every case, regardless of the sentence or disposition imposed, in which a crime victim suffers a loss"].) However, when the voters considered Proposition 8, "[t]he ballot arguments for and against the measure scarcely mentioned restitution." (*People v. Birkett* (1999) 21 Cal.4th 226, 244.)

Article I, section 28, subdivision (b), which has since been amended, expressly ordered the Legislature to enact statutes to implement a new victim restitution framework. (*In re Brittany L.*, *supra*, 99 Cal.App.4th at p. 1386; *Giordano*, *supra*, 42 Cal.4th at p. 652.) In response, in 1995, the Legislature amended section 1202.4 "to create a uniform restitutionary scheme for all adult offenders." (*Birkett*, *supra*, 21 Cal.4th at p. 248, fn. 21.) Thus, today, most of the provisions of the criminal victim restitution scheme are located in section 1202.4.

In cases where probation is granted, restitution must be ordered as a condition of probation. (§ 1202.4, subd. (l) ["In every case in which the defendant is granted probation, the court shall make the payment of restitution fines and order imposed pursuant to this section a condition of probation."].) Section 1202.4 does not expressly grant trial courts the power to impose restitution in probation cases other than as a condition of probation, and subdivision (l) suggests that victim restitution in the context of a probation sentence may only be ordered as a condition of probation. (*Waters*, *supra*, 241 Cal.App.4th at p. 830.)[3]

In turn, section 1203.3, subdivision (b)(3), limits the court's authority to revoke or modify probation to the probationary period. (§ 1203.3, subd. (b)(3); accord *People v. White* (1982) 133 Cal.App.3d 677, 682 ["An order revoking probation must be made within the period of time circumscribed in the order of probation. Otherwise, the probationary period terminates automatically on the last day"].)

[3] Effective January 1, 2022, Assembly Bill No. 177 amended section 1202.4 to, in relevant part, renumber subdivisions such that former section 1202.4, subdivision (m), is now subdivision (l).

B. The Statutory Provisions Indicate that the Legislature Intended to Restrict the Trial Court's Jurisdiction to Impose Restitution to the Probationary Period.

Although article I, section 28 of the California Constitution provided a "broad constitutional mandate" that restitution be imposed in every case where a crime victim suffers loss, there were aspects of that mandate that were left open to interpretation by the Legislature. (See *Giordano*, *supra*, 42 Cal.4th at pp. 649, 655 [finding that the scope of losses, which was left undefined by Proposition 8, extended to the future economic losses incurred by the deceased victim's surviving spouse as a result of the victim's death].) The trial court's jurisdictional limits to set a restitution amount was one such aspect that was left unaddressed by article I, section 28, subdivision (b).

To determine the scope of the trial court's jurisdiction to impose restitution, this Court must "look to the statutes the Legislature has enacted to implement this constitutional provision." (*Giordano*, *supra*, 42 Cal.4th at p. 655.) "[I]t is well settled that when the Legislature is charged with implementing an unclear constitutional provision, the Legislature's interpretation of the measure deserves great deference." (*Birkett*, *supra*, 21 Cal.4th at p. 244.) "When the Legislature has 'adopted a plausible interpretation of the constitutional provision,' we defer to its determination." (*Giordano*, *supra*, 42 Cal.4th at p. 656, quoting *Birkett*, *supra*, 21 Cal.4th at p. 244.)

The statutory scheme for restitution makes clear that where probation is granted, the Legislature has determined that a court retains authority to impose or modify an order of restitution, but only during the probationary period. (§ 1203.3, subds. (a), (b)(5).) Once a probationary term has expired,

section 1203.3 plainly indicates that the trial court loses that authority. Although section 1203.3, subdivision (a), has been amended since McCune committed his underlying offense, the version of the statute in effect then and the version currently in effect both provide, in relevant part: "The court shall have authority at any time during the term of probation to revoke, modify, or change its order of suspension of imposition or execution of sentence." (§ 1203.3, subd. (a), emphasis added.)

It is well settled that "the statute itself furnishes the measure of the power which may thus be exercised . . . ." (*In re Griffin* (1967) 67 Cal.2d 343, 346.)

In *Griffin*, this Court considered the jurisdictional effect of former section 1203.3 in a habeas corpus proceeding challenging an order revoking probation entered after the defendant's term of probation had expired. In framing the jurisdictional issue, this Court underscored that "section 1203.3 provides that the court shall have authority to revoke or modify probation 'at any time during the term of probation.'" (*Griffin*, *supra*, 67 Cal.2d at p. 346.) Citing this language, this Court endorsed the long-held view that "'the court loses jurisdiction or power to make an order revoking or modifying the order suspending the imposition of sentence or the execution thereof and admitting the defendant to probation after the probationary period has expired.' [Citations.]" (*Ibid.*, fn. omitted.)

CONCLUSION

Once a defendant is discharged from probation, he should be emancipated from further court orders modifying his sentence, including those imposing new amounts of restitution. "[T]o hold otherwise would subject a defendant placed on probation to a lifetime restitution obligation and there would be no end to the

restitution orders trial courts could impose on such a defendant." (*Hilton*, *supra*, 239 Cal.App.4th at p. 769.)

For the reasons set forth above, this Court should reverse the Court of Appeal's holding that the court retained jurisdiction to determine and award victim restitution after probation had terminated.

DATED: December 30, 2022 Respectfully submitted,

By: /s/ KAIYA PIROLO
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CERTIFICATION OF WORD COUNT

Pursuant to rule 8.520(c)(1) of the California Rules of Court, I, Kaiya Pirolo, *appointed counsel for Scotlane McCune*, certify that I prepared the foregoing document on behalf of my client, and that the word count for this brief is 2,236, excluding the tables and this certificate. This brief therefore complies with the rule, which limits a computer-generated opening brief on the merits to 14,000 words. The count includes footnotes and was computed from the text of the brief. I certify under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATED: December 30, 2022 Respectfully submitted,

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ATTORNEY'S PROOF OF SERVICE

(Code Civ. Proc., § 1013a, subd. (2); Cal. Rules of Court, rules 8.71(f) and 8.77)

I, Kaiya Pirolo, certify: I am an active member of the State Bar of California and am not a party to this cause. My electronic service address is kaiya@pirololaw.com and my business address is 1839 Ygnacio Valley Rd, #234, Walnut Creek, CA 94598. On December 30, 2022, I served the persons and entities listed below by the method checked. For those marked "Served Electronically," I transmitted a PDF version of Opening Brief on the Merits by electronic service to the e-mail service address provided below.

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I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on December 30, 2022, at Walnut Creek, California.

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